EUROPEAN COMMISSION
DG Competition

Case M.11143 – CMA CGM / BOLLORE LOGISTICS

Only the English text is available and authentic.

REGULATION (EC) No 139/2004
MERGER PROCEDURE

Decision on the implementation of the commitments - Purchaser approval

Date: 15/07/2024

EUROPEAN COMMISSION

Brussels, 15.7.2024
C(2024) 5157 final

PUBLIC VERSION

In the published version of this decision, some information has been omitted pursuant to Article 17(2) of Council Regulation (EC) No 139/2004 concerning non-disclosure of business secrets and other confidential information. The omissions are shown thus […]. Where possible the information omitted has been replaced by ranges of figures or a general description.

CMA CGM S.A.
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France

Dear Sir or Madam,

Subject: Case M.11143 – CMA CGM / BOLLORE LOGISTICS
Approval of Balguerie as purchaser of Bolloré Logistics SE's freight forwarding and contract logistics activities in Martinique, Guadeloupe, Saint Martin, and French Guiana, following your letter of 14 June 2024 and the Trustee's opinion of 21 June 2024

1. FACTS AND PROCEDURE

(1) By decision of 23 February 2024 (the 'Decision') based on Article 6(1)(b) in connection with Article 6(2) of Council Regulation No 139/2004,[1] the Commission declared the operation by which CMA CGM S.A. ('CMA CGM' or 'Notifying Party', France) acquires, by way of purchase of shares, sole control of the whole of Bolloré Logistics SE ('Bolloré Logistics', France), compatible with the internal market, subject to conditions and obligations provided in the Annex of the Decision (the 'Commitments'). CMA CGM and Bolloré Logistics are hereinafter jointly designated as the 'Parties'.

[1] OJ L 24, 29.1.2004, p. 1 (the 'Merger Regulation'). With effect from 1 December 2009, the Treaty on the Functioning of the European Union ('TFEU') has introduced certain changes, such as the replacement of 'Community' by 'Union' and 'common market' by 'internal market'. The terminology of the TFEU will be used throughout this decision.

(2) Notably, the Commitments provide that CMA CGM commits to divest to an independent and suitable purchaser Bolloré Logistics' legal entities and activities in air and sea freight forwarding, as well as contract logistics, in Martinique, Guadeloupe, Saint Martin, and French Guiana ('Divestment Business'), further described in the following paragraphs.

(3) *First*, the Divestment Business includes the following legal entities established in these territories: Bolloré Logistics Guadeloupe SAS, Guadeloupe Transit Déménagement SAS, SMTL Bolloré Logistics Martinique SAS, and Bolloré Logistics Guyane SAS[2] ('Divestment Entities').

(4) The Notifying Party commits to divest the Divestment Business which includes, in particular:

(a) all tangible and intangible assets of the Divestment Entities (including products under development and related rights, intellectual property rights, and know how);

(b) all licences, permits, and authorisations issued by any governmental organisation for the benefit of the Divestment Business;

(c) all contracts, leases, commitments, and customer orders of the Divestment Business;

(d) all customers, credit, and other records of the Divestment Business; and

(e) all staff currently employed by the Divestment Entities, including staff seconded to the Divestment Entities.

(5) *Second*, the Divestment Business also includes relationships with customers with activities in Martinique, Guadeloupe, Saint Martin, and French Guiana which are currently commercially managed by Bolloré Logistics' legal entities in mainland France ('Bolloré Logistics France'). A number of global customers with multi-destination commercial relationships with Bolloré Logistics France, as well as those customers carrying out only a limited part of their business in these territories, are excluded from the scope of the Divestment Business ('Global Excluded Clients'), as described in detail in the Commitments. The Notifying Party commits to offer to the purchaser the option to enter into an exclusive agency agreement with the Notifying Party to serve the Global Excluded Clients in the concerned territories.

(6) *Third*, the Notifying Party undertakes, in order to ensure the viability of the Divestment Business, to also transfer (i) some limitedly defined personnel of Bolloré Logistics France located in mainland France[3] and (ii) staff employed by Bolloré Logistics France's subcontractors for warehousing services provided to Bolloré Logistics France.

(7) *Fourth*, the Divestment Business includes the benefit, for a transitional period, on terms and conditions equivalent to those at present afforded to the Divestment

[2] Only [>50]% of the entire share capital of Bolloré Logistics Guyane SAS is owned by Bolloré Logistics and is part of the Divestment Business.

[3] These are the employees of Bolloré Logistics France who are currently devoted to flows from/to Martinique, Guadeloupe, Saint Martin, and French Guiana.

Business or at cost, at the option of the purchaser, of the current arrangements under which Bolloré Logistics or its affiliated undertakings supply products or services to the Divestment Business or which are necessary for the viability of the Divestment Business, such as IT infrastructure and software, human resources, and financial services.

(8) *Finally*, the Notifying Party commits, for a period of […] after closing of the purchaser's acquisition of the Divestment Business:

(a) Not to solicit the key personnel of the Divestment Entities and personnel of Bolloré Logistics located in mainland France transferred with the Divestment Business ('Non-Solicitation Agreement');

(b) Not to provide freight forwarding services to and from Guadeloupe, Martinique, Saint Martin, and French Guiana, with the exception of services to Global Excluded Clients ('Non-Competition Agreement'); and

(c) To refrain from developing any local presence in the provision of freight forwarding services in Guadeloupe, Martinique, Saint Martin, and French Guiana ('Non-Relocation Agreement').

(9) On 14 June 2024, CMA CGM proposed Balguerie Gestion Participation ('Balguerie', France) for approval by the Commission as purchaser of the Divestment Business (the 'Reasoned Proposal') and submitted a copy of the proposed Shares and Assets Purchase Agreement, dated 7 June 2024, and of the related agreements (the 'Proposed Agreements').

(10) On 21 June 2024, Advolis SAS (the 'Trustee', France) submitted an assessment of Balguerie's suitability as a purchaser (the 'Reasoned Opinion'), indicating that Balguerie fulfils the criteria of the purchaser requirements in section D of the Commitments attached to the Decision. In this assessment, the Trustee also indicated that, on the basis of the Proposed Agreements, the Divestment Business would be sold in a manner consistent with the Commitments.

2. ASSESSMENT OF THE PROPOSAL

2.1. Legal framework

(11) According to paragraphs 19-20 of the Commitments, the Commission has to verify that the Divestment Business is being sold in a manner consistent with the Commitments and that the purchaser fulfils the purchaser criteria. According to paragraph 19 of the Commitments, in its assessment of the proposed purchaser, the Commission should ensure that:

(a) The purchaser is independent of and unconnected to the Notifying Party and its affiliated undertakings.

(b) The purchaser has the financial resources, proven expertise, and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

(c) The acquisition of the Divestment Business by the purchaser is not likely to create, in light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the purchaser must reasonably

be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(d) The purchaser is an operator already active in the market for freight forwarding having significant activities in mainland France.

(12) Under paragraph 20 of the Commitments, the Commission may approve the sale of the Divestment Business without one or more assets or parts of the personnel, if this does not affect the viability and competitiveness of the Divestment Business after the sale, taking account of the proposed purchaser.

2.2. Description of the proposed purchaser

(13) Balguerie is a French freight forwarder offering a comprehensive range of services in the transport sector, including maritime, aerial, and terrestrial transport. Balguerie operates in several key geographic areas, notably Europe, Asia, and the United States. Balguerie employs around 900 employees across 25 operational sites and 40 locations worldwide.

2.3. Purchaser criteria

2.3.1. Independence from the Parties

(14) Under paragraph 19(a) of the Commitments, to be approved by the Commission, a suitable purchaser must be independent from and unconnected to the Notifying Party and its affiliated undertakings (this being assessed having regard to the situation following the divestiture).

(15) According to the information provided by the Notifying Party and the Trustee, there are no direct or indirect shareholdings between Balguerie and CMA CGM or Bolloré Logistics. In addition, Balguerie does not share any executive or non-executive directors nor has any joint ventures or other economic interest groupings with CMA CGM or with Bolloré Logistics.[4]

(16) Balguerie has no commercial links with Bolloré Logistics or its affiliated undertakings.[5] However, as a sea freight forwarder, Balguerie is a customer of CMA CGM. In 2023, Balguerie purchased container liner shipping services from CMA CGM in the amount of EUR […], representing approximately [10-20]% in volume and [20-30]% in value of Balguerie's total purchases of container liner shipping services that year. These sales to Balguerie represent less than [0-5]% of CMA CGM's total sales of container liner shipping services in 2023.[6] Balguerie also purchased from CMA CGM air cargo transport and freight forwarding services (in the amount of less than EUR […] each). In addition, […].[7]

(17) The Notifying Party submits that these agreements—*i.e.*, the purchase relationships […]—were concluded in the ordinary course of business and on an arm's length basis. The Trustee considers that these agreements reflect a normal commercial relationship between a sea freight forwarder and a container liner shipping carrier.[8]

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4 Reasoned Proposal, Section 1, and Reasoned Opinion, Section 6.1.
5 See additional information provided by CMA CGM to the Commission on 3 July 2024.
6 See additional information provided by CMA CGM to the Commission on 5 July 2024.
7 Reasoned Proposal, paragraphs 14-20.
8 Reasoned Opinion, page 37.

The Commission considers that these agreements, and notably the purchase relationships between Balguerie and CMA CGM, reflect normal commercial relations and concludes, in view of Balguerie's moderate purchasing share of CMA CGM's container liner shipping services, that they are not capable of affecting the economic independence of Balguerie.

(18) The Proposed Agreements will create additional commercial links between CMA CGM and Balguerie, in the form of (i) transitory services agreements ('TSA')[9] and (ii) other ancillary agreements.[10] The Trustee notes that the conclusion of TSAs (envisioned in the Commitments) is customary in this type of transactions and necessary in this case to ensure the viability of the Divestment Business. Regarding the other ancillary agreements, the Trustee considers that they also contribute to ensure the viability of the Divestment Business. The Trustee therefore concludes that Balguerie is independent from the Parties and their affiliated undertakings.[11]

(19) On the basis of the information provided by the Notifying Party and taking into account the Reasoned Opinion submitted by the Trustee, the Commission concludes that Balguerie is independent from, and unconnected to, the Parties and their affiliated undertakings.

2.3.2. Financial resources, proven expertise, and incentive to maintain and develop the Divestment Business as a viable and active competitive force

(20) Under paragraph 19(b) of the Commitments, the Purchaser shall have the financial resources, proven expertise, and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

2.3.2.1. Financial resources

(21) The Notifying Party submits that Balguerie has the financial resources to maintain and develop the Divestment Business as a viable and active competitive force. It notes, in particular, that Balguerie achieved a worldwide turnover of approximately EUR […] in 2022 and approximately EUR […] in 2023 (excluding customs and taxes but including freight).[12] The Commission notes, that in 2023, Balguerie had net cash and equity positions of approximately EUR […]. The transaction will moreover be entirely financed by Balguerie's own cash resources (purchase price of approximately EUR […]). As the transaction will require less than […] of Balguerie's cash resources, the Notifying Party considers that Balguerie would be capable of funding any further investments that could be required to integrate the

9 The TSAs cover, notably, (i) IT, human resources, and financial services […], (ii) subcontracting agreements regarding warehousing operations […], (iii) an air freight purchase agreement […], (iv) a transitional customer services agreement […], and (v) an operational agency agreement whereby Bolloré Logistics will entrust the Divestment Business, on an exclusive basis, with the technical operations necessary to handle the Global Excluded Clients, for a period of […].

10 Other ancillary agreements include, notably, (i) a trademark sub-license agreement […], (ii) a maritime freight purchase agreement and a volume incentive agreement […], (iii) sub-lease agreements of offices in mainland France […], and (iv) a warranty agreement […].

11 Reasoned Opinion, page 37.

12 […]. See Reasoned Proposal, paragraph 22. Moreover, Balguerie's turnover for the first five months of 2024 is stable compared to the turnover for the same period in 2023 (see additional information provided by the Trustee to the Commission on 3 July 2024).

Divestment Business. Additionally, as Balguerie currently has […], it would in principle have debt raising capabilities, if necessary.[13]

(22) Balguerie is moreover a profitable company with a solid financial position and liquidity. Balguerie has shown positive operating results […], which demonstrates its ability to manage resources effectively and generate profits even in fluctuating market conditions.[14]

(23) On the basis of the information provided by the Parties and taking into account the Reasoned Opinion submitted by the Trustee, the Commission therefore concludes that Balguerie has the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

2.3.2.2. Proven expertise

(24) Balguerie is a well-established freight forwarder based in France with 25 agencies worldwide. Overall, it arranged transportation for over […] TEUs and […] tons of air freight.[15]

(25) In addition, Balguerie already has experience in the French overseas territories, handling approximately […] TEUs per year thanks in part to its own agency in the island of Réunion. In Réunion, the group has grown over the years through organic and external growth.[16]

(26) Balguerie has built a track record of successful acquisitions and subsequent development of acquired companies. Since 2015, it acquired three companies (Multitrade, Oceans, and ITP), which, together, represented a total turnover of EUR […] (including freight) and included […] employees. Both the turnover and number of employees of […] grew after the integration into Balguerie.[17]

(27) This is consistent with the Reasoned Opinion of the Trustee, who confirmed Balguerie has demonstrated a sufficient level of expertise and capabilities to integrate, maintain, and develop the Divestment Business.[18] The Trustee notes in this respect that Balguerie, as a French family-owned company with a long-term view and significant industry expertise, is positively perceived by the transferred employees.[19]

(28) On the basis of the information provided by the Parties and taking into account the Reasoned Opinion, the Commission therefore concludes that Balguerie has sufficient expertise to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

13 Reasoned Proposal, paragraphs 21-23.
14 Reasoned Opinion, page 39.
15 Reasoned Proposal, paragraph 26.
16 Reasoned Proposal, paragraph 28 and Reasoned Opinion, page 38.
17 Reasoned Opinion, page 38 and Annex 11.
18 Reasoned Opinion, pages 38-39.
19 Reasoned Opinion, page 39.

2.3.2.3. Incentive to maintain and develop the Divestment Business as a viable and active competitive force

(29) The Commission considers, based on the main financial indicators, that the Divestment Business represents an attractive investment opportunity for Balguerie. This is confirmed by Balguerie's business plan.

(30) According to its business plan, Balguerie expects the Divestment Business' net revenue to […].[20] The Commission also notes that the EBITDA margin of the Divestment Business is projected to […].[21]

(31) In addition, Balguerie offered a high price for the Divestment Business, creating incentives for this family-owned company to maintain and develop the Divestment Business in order to make it a profitable investment.

(32) This is also the view of the Trustee, according to which Balguerie has the capabilities and the proper incentives to maintain and develop the Divestment Business. The Trustee submits that the Divestment Business is seen by Balguerie as an opportunity to reinforce its presence in the French overseas territories and diversify its geographic footprint. The Divestment Business' operations in mainland France will complement Balguerie's existing activities in the Northern France area, where Balguerie also considers […].[22] The Transaction may also enable Balguerie to start operating in […].[23]

(33) In view of the information provided by CMA CGM and taking into account the Reasoned Opinion submitted by the Trustee, the Commission considers that Balguerie has a proven incentive to continue investing to maintain and develop the Divestment Business.

2.3.3. Absence of prima facie competition problems

(34) Under paragraph 19(c) of the Commitments, the transfer of the Divestment Business to a suitable purchaser must neither be likely to create *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed.

(35) This *prima facie* assessment is based on the information available for the purpose of this purchaser approval and does not prejudge the competition assessment of the acquisition of the Divestment Business by the French competition authority under the applicable French merger control rules.

(36) The acquisition by Balguerie of the Divestment Business does not give rise to *prima facie* competition problems.

(37) As far as horizontal links are concerned, Balguerie and the Divestment Business' activities overlap in the market for the provision of sea freight forwarding services in France, Guadeloupe, Saint Martin, Martinique, French Guiana, and French

20 Annex 10 of the Reasoned Opinion.
21 Annex 10 of the Reasoned Opinion.
22 Reasoned Opinion, pages 41-42.
23 Reasoned Proposal, paragraph 36.

Polynesia. In 2022, the combined market shares of Balguerie and the Divestment Business remain below 25% in each of these territories.[24]

(38) In addition, the Transaction does not give rise to any vertical relationships as neither Balguerie nor the Divestment Business are active in markets which are upstream or downstream to the other party's activities.

(39) The Trustee considers that, in light of the low combined market shares in markets where there are horizontal overlaps, and the absence of vertical relationships, *prima facie* competition concerns can be ruled out.[25]

(40) In view of the non-substantial horizontal overlaps and the absence of vertical relationships between the activities of Balguerie and those of the Divestment Business, the Commission considers that Balguerie's acquisition of the Divestment Business does not give rise to *prima facie* competition issues.

2.3.4. Freight forwarder operator with significant activities in mainland France

(41) Under paragraph 19(d) of the Commitments, the purchaser must be an operator already active, prior to the acquisition of the Divestment Business, in the market for the provision of freight forwarding services, having significant activities in mainland France.

(42) Balguerie, created in 1930 in Bordeaux, is an established freight forwarder based and headquartered in France. In 2022, Balguerie Group generated approximately EUR […] in revenues from the provision of freight forwarding services in France. It provides these services not only in mainland France, but also in French overseas territories, including Martinique, Guadeloupe, and French Guiana.

(43) Since its foundation, the group has expanded its presence in mainland France, where it currently has 12 agencies.[26] In 2023, Balguerie had […] employees and achieved a revenue of EUR […] in mainland France. This accounts for approximately [50-60]% of its worldwide revenue.[27]

(44) Accordingly, the Trustee considers that Balguerie's activities in mainland France are material enough for this requirement to be met.[28]

(45) In light of the above, the Commission considers that Balguerie's freight forwarding activities in mainland France are sufficient to meet the requirements laid out in under paragraph 19(d) of the Commitments.

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24 Reasoned Opinion, Section 6.3.1 and additional information provided by CMA CGM to the Commission on 25 June 2024.

25 Reasoned Opinion, Section 6.3.1.

26 Paris – Roissy-en-France, Beaume, Lille, Lyon, Le Havre, Pornic, Bordeaux, Toulouse, Marseille (Fos), Nice – Grasse – Biot, Bastia, and Ajaccio. These agencies are generally active in both sea and air freight forwarding, except for Le Havre, Pornic, Bastia, and Ajaccio, which focus on sea freight forwarding.

27 Additional information provided by CMA CGM to the Commission on 25 June 2024.

28 Reasoned Opinion, Section 6.4.

2.3.5. Conclusion on the purchaser criteria

(46) In light of the above considerations and taking into account the Reasoned Opinion submitted by the Trustee, the Commission concludes that Balguerie meets the purchaser criteria set out in paragraph 19 of the Commitments.

2.4. Assessment of the Proposed Agreements

(47) The Proposed Agreements consist of a Shares and Assets Purchase Agreement, dated 7 June 2024, covering the sale of the Divestment Business to Balguerie, and related agreements.

(48) The scope of the transaction, as defined in the Proposed Agreements, covers Bolloré Logistics' shares in each of the Divested Entities (including its assets, licenses, permits, authorisations, customers, personnel, and leases).[29] The Commission notes that the actual number of customers and employees of the Divested Entities do not fully coincide with the ones provided in the Commitments.[30] However, the variations are limited and caused by normal course of business factors. Moreover, the Trustee confirms that all current employees and customers of the Divested Entities are included in the perimeter of the transaction.[31]

(49) In line with the Commitments, the Proposed Agreements also cover the transfer of relationships with customers with activities in Martinique, Guadeloupe, Saint Martin, and French Guiana currently managed by Bolloré Logistics France.[32] As specified in page 3 of the Commitments, a limited number of customers are excluded from the scope of the Divestment Business. The lists of Global Excluded Clients identified in the Form RM and in the Commitments[33] were updated to account for sales achieved in 2023 and are currently listed in Schedule 14.6.1 to the Shares and Assets Purchase Agreement. The Trustee did not identify missing customers.[34]

(50) Finally, in line with the Commitments, the Proposed Agreements also cover the transfer of a number of personnel of Bolloré Logistics France located in mainland France. The Commission notes that there is a limited variation in the number of employees identified in the Commitments and the updated number of employees that will be transferred.[35] However, that limited variation is caused by normal course of business factors. In addition, contrary to the wording of the Commitments (which mentioned that these employees could not be transferred to the purchaser automatically, but only on a voluntary basis, due to the applicable national labour legislation),[36] Bolloré Logistics will be able to automatically transfer the personnel of Bolloré Logistics France located in mainland France with the Divested Entities.[37] This modification, by eliminating the risk that some of

29 Reasoned Proposal, Section II.
30 Reasoned Opinion, Sections 4.1, 4.2, 5.1, 5.2, and Annexes 9-10.
31 Reasoned Opinion, pages 30-31.
32 Reasoned Opinion, Section 4.2.
33 Page 3 of the Commitments and Annexes 15-17 to the Form RM.
34 Reasoned Opinion, page 30.
35 Reasoned Proposal, Section 5.2 and Annex 10. The staff employed by Bolloré Logistics France's subcontractors for warehousing services provided to Bolloré Logistics France are included.
36 Commitments' Schedule, paragraph 2(d).
37 Reasoned Proposal, Section 5.2.

these customers would not voluntarily transfer, contributes to the viability of the Divestment Business.[38]

(51) Moreover, in line with the Commitments, the Proposed Agreements also include the (i) Non-Solicitation Agreement,[39] (ii) Non-Competition Agreement,[40] (iii) Non-Relocation Agreement,[41] (iv) transitory service agreements for the supply of key services in mainland France necessary to freight forwarding activities to and from Martinique, Guadeloupe, Saint Martin, and French Guiana (IT, human resources, and financial services),[42] and (v) operational agency agreement whereby Bolloré Logistics will entrust the Divestment Business, on an exclusive basis, with the technical operations necessary to handle the Global Excluded Clients' volumes in the territories at destination.[43]

(52) Finally, the Parties put in place a transitory service agreement whereby Bolloré Logistics will provide, for a limited transitory period after closing of the Divestment Business's acquisition ([…]), customer services to a limited number of Bolloré Logistics France's clients, on behalf of Balguerie.[44] This arrangement was put in place after the Hold-Separate Manager identified a risk of these customers not transferring to the purchaser. […]. CMA CGM argues that this arrangement is part of its '*best efforts to ensure that the relevant customers agree to be managed and invoiced* (…) *by the Purchaser*'.[45] The Monitoring Trustee agrees that this arrangement '*only aims at supporting the transfer of some clients at risk*', is '*limited in time and scope*', and therefore consistent with the Commitments.[46]

(53) The Trustee considers that the full permitter as set out in the Commitments will be divested pursuant to the Proposed Agreements and that the only minor modifications to the Commitments are '*viability-enhancing*'.[47]

(54) The Trustee also considers that the transitory service agreements and other ancillary arrangements, to be entered into by CMA CGM and Balguerie in relation to the Divestment Business, do not raise concerns.[48]

(55) In addition, the Trustee has not identified any issue in the Proposed Agreements which would hinder the purchaser's ability to maintain and grow the Divestment Business as a competitive force or would be inconsistent with the Commitments.[49]

(56) In light of the above considerations, the Commission concludes that the Proposed Agreements are consistent with the Commitments and that, accordingly, the Divestment Business is being transferred in a manner consistent with the Commitments.

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38 Reasoned Opinion, page 31.
39 Shares and Assets Purchase Agreement, clause 14.5 and schedule 14.5.
40 Shares and Assets Purchase Agreement, clause 14.6.1.
41 Shares and Assets Purchase Agreement, clauses 9.10(d) and 14.6.1 and schedule 9.10(D).
42 Reasoned Proposal, Section 6.2.
43 Reasoned Proposal, Section 7.
44 Reasoned Proposal, Section 6.1(c).
45 Commitments' Schedule, paragraph 2(c) and Reasoned Proposal, paragraph 75.
46 Reasoned Opinion, page 33.
47 Reasoned Opinion, page 36.
48 Reasoned Opinion, Section 5.3.
49 Reasoned Opinion, Sections 3 and 6.

3. CONCLUSION

(57) On the basis of the above assessment, the Commission approves Balguerie as a suitable purchaser for the above-mentioned reasons. On the basis of the Proposed Agreement, the Commission further concludes that the Divestment Business is being sold in a manner consistent with the Commitments.

(58) This decision only constitutes approval of the proposed purchaser identified herein and of the Proposed Agreements. This decision does not constitute a confirmation that CMA CGM has complied with its Commitments.

(59) This decision is based on Section D of the Commitments attached to the Commission Decision of 23 February 2024.

For the Commission

(Signed)
Olivier GUERSENT
Director-General